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Case Number: 24PSCV01924 Hearing Date: September 18, 2026 Dept: G

Defendant

Toby Miclat's Demurrer to Plaintiffs Bernadette Machovec, Paul Machovec, and Theresa Machovec's Amended Complaint

Respondent:

Plaintiffs Bernadette Machovec, Paul Machovec, Theresa Machovec and Defendants Daniel Machovec, Michael Machovec, David Machovec, and Christopher Machovec

Defendant

Toby Miclat's Motion to Strike Portions of Plaintiffs Bernadette Machovec, Paul Machovec, and Theresa Machovec's Amended Complaint

Respondent:

Plaintiffs Bernadette Machovec, Paul Machovec, Theresa Machovec and Defendants Daniel Machovec, Michael Machovec, David Machovec, and Christopher Machovec

TENTATIVE

RULING

Defendant

Toby Miclat's Demurrer to Plaintiffs Bernadette Machovec, Paul Machovec, and Theresa Machovec's Amended Complaint is SUSTAINED IN PART WITH TWENTY (20) DAYS LEAVE TO AMEND and OVERRULED IN PART.

Defendant

Toby Miclat's Motion to Strike Portions of Plaintiffs Bernadette Machovec, Paul Machovec, and Theresa Machovec's Amended Complaint is deemed MOOT.

BACKGROUND

This

is a wrongful death action. On May 1, 2022, plaintiff Bernadette Machovec (Bernadette) moved into Fil-Am Home for Seniors III (Fil-Am Home), a residential care facility for the elderly allegedly operated by defendant Stateside Medical LLC (Stateside) and allegedly owned by Toby Miclat (Miclat), for assisted living and dementia care. On November 26, 2022, Fil-Am Home employees allegedly called emergency services because they found Bernadette lethargic and unresponsive, and nonparty Pomona Valley Hospital allegedly diagnosed Bernadette with multiple face fractures, tissue pressure injuries on her coccyx and right foot, and pneumonia. On November 28, 2022, Bernadette passed away at Pomona Valley Hospital. She is allegedly survived by her children, plaintiffs Paul Machovec (Paul) and Theresa Harkness (Theresa) and defendants Daniel Machovec (Daniel), Michael Machovec (Michael), David Machovec (David), Christopher Machovec (Christopher), and Jeffrey Machovec (Jeffrey).

On

June 13, 2024, Bernadette (now acting through Paul), Paul, and Theresa (collectively, the Original Plaintiffs) filed the original Complaint. On March 12, 2026, the Original Plaintiffs filed the original Amended Complaint. On May 27, 2026, the Original Plaintiffs filed the operative Corrected Amended Complaint alleging causes of action for (1) elder abuse and neglect, (2) negligence, and (3) wrongful death. (The Amended Complaint and Corrected Amended Complaint do not allege wrongful conduct against Daniel, Michael, David, Christopher, and Jeffrey (collectively, the Nominal Defendants).)

On

June 26, 2026, Miclat filed this demurrer, with a motion to strike, to amended complaint (since the Corrected Amended Complaint is the operative pleading, the court interprets the demurrer and motion to strike as relating to the Corrected Amended Complaint). On July 7, 2026, the Original Plaintiffs and Daniel, Michael, David, and Christopher (collectively, the Machovec Family) filed the opposition, and on July 13, 2026, Miclat filed the reply.

On

July 20, 2026, the court continued the hearing to allow the parties to properly meet and confer. On August 25, 2026, the

court continued the hearing pending the resolution of the issue relating to the parties' legal representation. On September 4, 2026, the Machovec Family filed a supplemental brief, and on September 11, 2026, Miclat filed a supplemental brief.

The demurrer with motion to strike are set for a continued hearing on September 18, 2026.

REQUESTS FOR JUDICIAL NOTICE

Miclat requests that the court take judicial notice of the Amended Complaint. The court may take judicial notice of the records of any California court, including its own. (See Evid. Code, § 452, subd (d)(1).)

Thus, the court takes judicial notice of the Amended Complaint.

Miclat also requests that the court take judicial notice of a request the Machovec Family's counsel for records and bills sent to Fil-Am Home. The court does not find that the subject document is encompassed by Evidence Code sections 451 or 452.

Thus, the court declines to take judicial notice of the request for records and bills.

DEMURRER

Miclat demurs to each of the three causes of action. For the following reasons, the demurrer is OVERRULED IN PART and SUSTAINED IN PART WITH LEAVE TO AMEND.

Statute
of Limitations

Legal
Standard

“A

demurrer based on a statute of limitations will not lie where the action may be, but is not necessarily, barred. For the bar of the statute of limitations to be raised by demurrer, the defect must clearly and affirmatively appear on the face of the complaint; it is not enough that the complaint shows that the action may be barred.” (Marshall v. Gibson, Dunn & Crutcher (1995) 37 Cal.App.4th 1397, 1403, internal citation omitted.)

“In

order to rely on the discovery rule for delayed accrual of a cause of action, a plaintiff whose complaint shows on its face that [their] claim would be barred without the benefit of the discovery rule must specifically plead facts to show (1) the time and manner of discovery and (2) the inability to have made earlier discovery despite reasonable diligence.”

(Fox v. Ethicon Endo-Surgery, Inc. (2005) 35 Cal.4th 797, 808, cleaned up.)

Discussion

Miclat

argues that the third cause of action is barred by the applicable statute of limitations. (See Dem., p. 4, Gen. Dem. No. 1.) The court disagrees.

A

cause of action for wrongful death is subject to a two-year statute of limitations. (See Code Civ. Proc., § 335.1.) “[T]he statute of limitations runs separately against each heir’s cause of action.” (San Diego Gas & Electric Co. v. Super. Ct. (2007) 146 Cal.App.4th 1545, 1551.) “[T]he expiration of the statute of limitations as to one heir does not impact the timely wrongful death claims of other heirs.” (Ibid.)

Bernadette

passed away on November 28, 2022, and the Original Plaintiffs filed the Complaint on June 13, 2024, before the statute of limitations expired. (See Compl., ¶ 1.) Miclat contends that the Nominal Defendants cannot assert causes of action for wrongful death because they were not named before the statute of limitations expired.

(See Dem., pp. 8–10.) However, the Nominal Defendants do not assert causes of action for wrongful death in the Corrected Amended Complaint because they are not listed as plaintiffs. (See CAC, p. 1, listing only the Original Plaintiffs as plaintiffs; see also CAC, p. 20, specifying that only Paul and Theresa assert the third cause of action.) Thus, the court finds the statute of limitations does not bar any of the claims asserted in the Corrected Amended Complaint.

Therefore, the demurrer to the third cause of action based on the statute of limitations is OVERRULED.

Misjoinder

Legal
Standard

A party may object by demurrer to a complaint based on a misjoinder of the party. (See Code Civ. Proc., § 430.10, subd. (d).) The demurring party is entitled to a favorable ruling if they demonstrate some prejudice suffered or some interest affected by the misjoinder. (See *Anaya v. Super. Ct.* (1984) 160 Cal.App.3d 228, 231, fn. 1.) Failure to raise the misjoinder of parties at the demurrer stage constitutes a waiver of such objection. (See *Shaprio v. Ogle* (1972) 28 Cal.App.3d 261, 268.) As with other demurrers, the misjoinder must be apparent on the face of the complaint or via proper judicial notice. (See *Royal Surplus Lines Ins. Co. v. Ranger Ins. Co.* (2002) 100 Cal.App.4th 193, 198.)

Discussion

Miclat argues that the Nominal Defendants are misjoined because the Original Plaintiffs failed to serve the Nominal Defendants with the Amended Complaint. (See Dem., p. 4, Gen. Dem. No. 2.) The court disagrees.

The

wrongful death statute is “a procedural statute establishing compulsory joinder.” (Cross v. Pacific Gas & Electric Co. (1964) 60 Cal.2d 690, 692–693.) “Omitted heirs . . . are necessary parties, and plaintiff heirs have a mandatory duty to join all known omitted heirs in the single action for wrongful death.” (Ruttenberg v. Ruttenberg (1997) 53 Cal.App.4th 801, 807–808, internal quotation marks omitted.) Where “all the heirs are not joined, and timely objection is made on that ground by a defendant, the action should be abated, or, at least, the other heirs should be made parties.” (Salmon v. Rathjens (1907) 152 Cal. 290, 294–295.)

Here,

the court recognizes that all of Bernadette’s children are heirs and must be joined in a single wrongful death action. (See Ruttenberg, supra, 53 Cal.App.4th at 807–808.) The Corrected Amended Complaint joins the Nominal Defendants to this action. (See CAC, p. 1.) Miclat argues, however, that the Nominal Defendants do not have a sufficient “unity of interest” in this action because the court lacks jurisdiction over them as a result of the failure to serve them with the Amended Complaint. (Dem., p. 10.) But the Machovec Family’s counsel filed proofs of service for each of the Nominal Defendants, which reflects that they received the Amended Complaint. (See, e.g., 6/15/2026 POS-015 Re: Daniel Machovec, p. 1.) Thus, the court finds that the Nominal Defendants were properly served and joined.

Therefore,

the demurrer based on misjoinder is OVERRULED.

Uncertainty

Legal Standard

A complaint should be stated with “reasonable precision and with particularity sufficiently specific to acquaint the defendant of the nature, source, and extent” of the plaintiff’s causes of action. (Smith v. Kern County Land Co. (1959) 51 Cal.2d 205, 509.) The

matter is one of fairness, namely, to give the defendant adequate notice of what he is alleged to have done to be able to prepare his defense. (See *Bauer v. County of Ventura* (1955) 45 Cal.2d 276, 291.)

Discussion

Miclat argues that the Amended Complaint is uncertain and ambiguous as to Miclat's liability based on global assertions against "all defendants" and the mismatch between the case caption and party designations from the headings and body of the pleading. (See Dem., p. 4, Gen. Dem. No. 3 and Spec. Dem. Nos. 1–2.) The court agrees.

A complaint must plead ultimate facts rather than mere legal conclusions. (See *FPI Development, Inc. v. Nakashimi* (1991) 231 Cal.App.3d 367, 384.) Demurrers for uncertainty are disfavored and strictly construed, particularly where any lack of detail can be clarified through discovery or stipulations. (See *Chen v. Berenjian* (2019) 33 Cal.App.5th 811, 822.)

As to Miclat, the Corrected Amended Complaint does not contain any specific factual allegations mentioning Miclat. (See generally CAC.) The Corrected Amended Complaint notes that Miclat "has been substituted in as D[oe] 1." (CAC, ¶ 7.) However, this is inconsistent with the statement in the Corrected Amended Complaint that the Original Plaintiffs are "ignorant of the true name[] and capacity[y]" of Doe 1. (CAC, ¶ 10.) Additionally, the Corrected Amended Complaint does not replace every allegation mentioning Doe 1 with Miclat's name. (See CAC, ¶¶ 21, 57, 81, 85, 130.) This problem is also repeated in the subheadings for the second and third causes of actions. (See CAC, pp. 19–20.) Thus, the court finds the Corrected Amended Complaint is uncertain as to Miclat.

Relatedly, regarding the

Nominal Defendants, the Corrected Amended Complaint alleges that "[n]o wrongful conduct is being alleged against [the Nominal Defendants]. They are being named as nominal defendants to give notice of their status as heirs.

Such parties are named solely to ensure the unity of the wrongful death action." (CAC, ¶ 5.) However, the first and second causes of

action are asserted against “[a]ll [d]efendants,” which would include the Nominal Defendants. (CAC, pp. 13, 19.) Furthermore, the Machovec Family “respectfully submit[s] that this is a pleading clarity issue.” (Machovec Supp. Brief, p. 7.) Thus, the Corrected Amended Complaint is also uncertain as to the Nominal Defendants.

Therefore, the demurrer based on uncertainty is SUSTAINED WITH LEAVE TO AMEND.

Claim Against a Dismissed Party

Legal Standard

“An amended complaint supersedes all prior complaints.” (Lee v. Bank of America (1994) 27 Cal.App.4th 197, 215, cleaned up.) “It has long been the rule that an amended complaint that omits defendants named in the original complaint operates as a dismissal as to them.” (Fireman’s Fund Ins. Co. v. Sparks Construction, Inc. (2004) 114 Cal.App.4th 1135, 1142, internal citation omitted.)

Discussion

Miclat argues that the claims against her are barred because is no longer a party in this action. (See Dem., p. 4, Gen. Dem. No. 4.) The court disagrees.

As stated above, an amended complaint that omits a defendant named in a previous complaint operates as a dismissal of that defendant. (See Fireman’s Fund Ins. Co., supra, 114 Cal.App.4th at 1142.)

Here, the Original Plaintiffs named Miclat as Doe 1 on October 7, 2024. (See 10/7/2024 Amend. to Compl., p. 1.) The original Amended Complaint and the Corrected Amended Complaint contained allegations and asserted causes of action against Doe 1 on March 12, 2026. (See AC, ¶¶ 7, 10, 21, 57, 81, 85, 130; see also CAC, ¶¶ 7, 10, 21, 57, 81, 85, 130.) Since the amended pleading(s) did not omit Doe 1, the court finds that Miclat was not dismissed from the action.

Therefore, the demurrer based on a claim against a

dismissed party is OVERRULED.

MOTION
TO STRIKE

Since
the court sustains the demurrer with leave to amend, the motion to strike is
deemed MOOT.

CONCLUSION

For
these reasons, the demurrer is OVERRULED IN PART and SUSTAINED IN PART WITH
TWENTY (20) DAYS LEAVE TO AMEND.

The
motion to strike is deemed MOOT.